TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
AUGUST 31, 2020
MINUTES

Attachment 1--**Staff Report**

Present: Barry Wolff, Chair, Julian Hopkins, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Absent: Beth Santilli.
Staff: Michael Robertson, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Duke moved for approval of the agenda. Ms. Stevens seconded the motion. All in favor.

B. Approval of Minutes

Mr. Wood moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no comments, Mr. Wolff continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Mr. Wolff explained the procedures and administered the oath to those speaking.

G. Business

1. **Case V-19-2020, 675 Adluh Street, TMS# 532-05-00-203, Request for relief from the strict application of Sections 156.315 SR2-OD, Special R-2 Overlay District to allow an approximately two-foot**

setback from the front property line for accessory structure. The ordinance requires a 15-foot front yard setback.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

- Ms. Andrea Schanz, owner, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance with the caveat that it is limited to the front awning only and that it would not expanded from the current footprint. Mr. Hopkins seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Hopkins, Ms. Stevens, Mr. Duke, and Mr. Wood in favor; Mr. Barrow opposed.*

2. **Case V-20-2020, 11 Pierates Cruz, TMS# 532-09-00-015, Request for relief from the strict application of Sections 156.226 Tree Removal, Relocation and Replacement to allow 100% mitigation for tree removal. The ordinance requires 200% for trees removed without prior approval. The applicant contends approval was granted. CORRESPONDENCE**

This item was withdrawn by the applicant.

3. **Case V-21-2020, 1478 Barbara Street, TMS# 532-11-00-049, Request for relief from the strict application of Sections 156.111 Location of Accessory Uses to allow a 3-foot side yard setback for an accessory structure. The ordinance requires a 6-foot setback for accessory structures.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Jonathan Hood, owner, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

▶ *Mr. Barrow moved for approval of the variance based on the findings that all criteria have been satisfied as submitted and based on the testimony provided at the meeting. Mr. Duke seconded the motion. All in favor.*

4. **Case V-22-2020, 344 Shelmore Blvd., TMS# 535-06-00-415, Request for relief from the strict application of the I'On Code Planned Development ordinance to allow a 60% lot coverage for a 'Side Yard Building" lot and an additional 3.7% coverage for a patio. The I'On Planned Development Ordinance limits "Side Yard" lots to 50% maximum lot coverage. CORRESPONDENCE**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Ms. Anna Gonzalez, representative for owner, reviewed the request with the Board.

There being no comments, Mr. Wolff closed the public comment.

▶ *Mr. Wood moved for denial of the variance for the patio based on the grounds that the 3rd test of criteria has not been satisfied. Mr. Duke seconded the motion. Motion passed on a 5 to 1 vote with Mr. Wolff, Mr. Barrow, Mr. Hopkins, Mr. Duke and Mr. Wood in favor; Ms. Stevens opposed.*

5. **Case V-23-2020, 324 Pitt Street, TMS# 532-05-00-050, Request for relief from the strict application of §§ 156.303 Residential Use Districts and 156.321 Impervious Surface Lot Coverage Overlay District to allow a 52.9% building coverage and 58.7% impervious lot coverage. The ordinance limits both building coverage and impervious lot coverage to 40%. CORRESPONDENCE**

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

▶ Ms. Elizabeth Drake, representative to the owner, reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for approval of the variance based on the submitted documents and the testimony provided at the meeting that all requirements have been met. Ms. Stevens seconded the motion. All in favor.*

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 7:26 pm.

Submitted by,
L. Lynes
BOZA08312020